

What is a 'criminal' immigrant? The word is an American rhetorical trap | Jonathan Ben-Menachem

Last month, the Trump administration [flew](#) 238 Venezuelan immigrants to a brutal prison in El Salvador. Federal officials alleged that the detainees were members of the Tren de Aragua gang, [calling](#) them “heinous monsters”, “criminal aliens”, “[the worst of the worst](#)”. The federal government has also revoked visas for [a thousand](#) international students over their alleged participation in protests against Israel’s genocide in Palestine. Some were abducted, like Mahmoud Khalil, who has spent more than a month incarcerated in one of the [worst](#) jails in the US. Officials [alleged](#) that Mahmoud “sided with terrorists ... who have killed innocent men, women, and children”.

Media reports quickly revealed that the Trump administration is [lying](#) about “[innocent](#)” people to [justify](#) abducting them. But this raises a more important question: if Trump’s victims weren’t “innocent”, does that make them disposable? I worry that emphasizing the [innocence](#) of victims creates a rhetorical trap. It’s like carefully digging a pit that the fascists can shove us into.

Instead, we should interrogate the fact that the [Trump administration](#) chose to target “gang members” and “terrorist supporters” in the first step of its ethnic cleansing project. Criminals and terrorists are the bogeymen animating bipartisan racism against Black, Latino and Arab people, and Trump is weaponizing these myths because many liberals have already written them off as less than human. The political context that enabled US residents to be shipped to El Salvador’s Cecot facility is a bipartisan project more than 50 years in the making, largely unquestioned by people who are rightfully horrified by recent escalations.

Allegations of [criminality](#) have long been an effective [pretext](#) for anti-Black violence in the US – this is the “[war on crime](#)”. So long as there are “criminals” to fight, vicious [police brutality](#) becomes politically palatable. This is true in blue and red states [alike](#). The gang member is the latest symbol used to [dehumanize](#) Black and Latino people, replacing the “[superpredator](#)”. In practice, police and prosecutors invoke the specter of monstrous gangs to continue [targeting](#) entire neighborhoods while evading allegations of explicit discrimination.

You can be added to a gang database because of your [tattoos](#), the color of the [clothing](#) you wear or even for using certain [emojis](#) on social media. These lists are riddled with errors, sometimes naming [toddlers](#) and [elders](#). More commonly, gang databases index the [thousands](#) of people – [often children](#) – swept up by police because of where they live or whom they socialize with. The consequences of gang policing are [devastating](#): it can lead to [federal prosecution](#) or [potential deportation](#), not to mention a lifetime of state [harassment](#).

Gang membership isn’t the only tool the Trump administration can use to portray its victims as guilty. When the “war on crime” morphed into the “war on terror”, Arab and Muslim residents suffered from discriminatory [surveillance](#) and repression – the “terrorist” category matches the “gang member” category in that it justifies racist dragnet policing practices. The “counter-terrorism” net has already widened, [targeting](#) Stop Cop City activists in Atlanta. This problem is not limited to Republicans – liberal [politicians](#) and [university stakeholders](#) laid the [groundwork](#) for Trump’s deportation efforts. Last year, the Anti-Defamation League’s CEO, Jonathan Greenblatt, called student Palestine activists [proxies for Iran](#), and New York City’s mayor, Eric Adams, smeared us as [terrorist supporters](#) to justify an incredibly [violent](#) police raid.

The widening net of who is considered a criminal not only chills dissent among immigrants and activists. It further dehumanizes and renders disposable people who have genuinely committed harm.

We must defend the rights of people who *do* have criminal records. No one deserves to be whisked away to a brutal prison that deprives them of basic human rights – no matter if it's in El Salvador, [Louisiana](#), [California](#), [Pennsylvania](#) or [New York](#). Criminal records and bona fide gang membership don't turn human beings into monsters. If Trump goes through with his plan of sending citizens to El Salvador, he could initially target people convicted of heinous crimes. This would allow federal officials to ask: "Why do liberals care about pedophiles and murderers?"

We should be prepared to defend the basic rights of *all* of Trump's targets with our full strength. If a single person becomes disposable, anyone could become the next target. Last week, Trump said he "[loved](#)" the idea of sending American "criminals" to El Salvador, and law professors are [sounding the alarm](#) about citizen student activists being subjected to terrorism prosecutions. First it will be the "migrant gang member" or "terrorist on a student visa" sent to Cecot. Next it will be the domestic gang member and the terrorist-supporting citizen. Eventually, perhaps any political opponent could be construed as a criminal-terrorist.

Trump may not even need to rely on the justice department to criminalize his enemies – dozens of local cops [joined](#) the 6 January 2021 putsch at the US Capitol, and local prosecutors have eagerly [charged](#) student activists with [felonies](#). This is another reason to avoid the innocence trap: many police [love](#) Trump, and law enforcement can very easily make their [adversaries](#) seem like [criminals](#).

The innocence trap is dangerous because allegations of criminality have always been deployed to justify state violence. If we only defend the "innocent", the fascists will argue that their victim "[was no angel](#)". An anti-fascist rhetoric that carves out exceptions for [imperfect victims](#) is a gift to our opponents.

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